

Date: 6/26/2024

Dear **Avanish Kumar Gupta**,

“I am pleased to offer you the position of **‘Associate Software Engineer’** based in our office Brigade Opus 4th & 5th Floor, Kodigehalli Main Road, Sanjeevani Nagar, Bengaluru - 560092

Your remuneration – Total Cost upon commencement will be **Rs. 965000/- Per Annum (Rupees Nine Lakhs Sixty Five Thousand Only)** The detailed break-down of your overall annual cost is already given in the offer letter. There will be regular reviews based on progress and performance, which will determine salary reviews. Other major terms and conditions of employment are also detailed on the attached Appendix.

This offer of employment is conditional subject to the following:

- a) Your acceptance of all terms and conditions of employment as laid out in our Employee Handbook as amended from time to time.
- b) This offer of employment is conditional subject upon your agreement that you will at all times during the term of your employment, abide with all policies and procedures of the company as notified to you from time to time.
- c) Receipt of a satisfactory Background Check including verification of educational achievements, employment references, criminal record checks, credit checks and professional affiliations (where appropriate).
- d) Satisfactory results on completion of a full Medical Examination.
- e) You're being free from any obligation owed to your present employer which might prevent you from performing any aspect of your role and / or from commencing employment on or before **6/26/2024**
- f) Receipt of a Birth Certificate, Passport, and Permanent Account Number (PAN) or where appropriate a valid work permit confirming that you are entitled to work in India.

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To confirm your acceptance of this offer please send to me by return a signed copy of this offer letter and the Appendix confirming your start date.

This offer is valid until **6/26/2024** on which date it will expire.

In addition, in order to allow us to complete all necessary new hire paperwork including adding you to our payroll system, please bring each of the following with you on your first day at work with Berkadia:

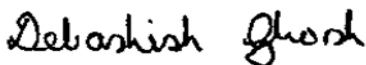
- a) Passport size photographs (4).
- b) Where applicable, Form 16 from your present employer.
- c) Copy of your Permanent Account Number (PAN) card.
- d) A copy of your Passport and / or your Birth Certificate and / or a copy of your work permit or employment visa to verify identification and authorisation of your right to work in India.
- e) Copy of any certification obtained as a result of third level qualifications listed on your Curriculum Vitae.

If you have any queries regarding the contents of this letter, the items enclosed or any aspect of employment with the Company, please don't hesitate to contact for any queries.

I look forward to receive your acceptance and hope this will be the start of a mutually beneficial association with our Company.

Yours sincerely,

For Berkadia Services India Private Limited



Debashish Ghosh
Senior Vice President - Human Resources

I accept the terms and conditions detailed in the offer letter and confirm the date on which I will commence employment with Berkadia Services India Private Limited as follows:

Signed:

Date:

Date of Commencement of Employment:

Appendix – summary of your Terms and Conditions of employment

Name: **Avanish Kumar Gupta,**
Title: **‘Associate Software Engineer’**

Further to our offer letter, please see below the terms & conditions of your employment with Berkadia Services India Private Limited.

You will be employed as **‘Associate Software Engineer’** and will normally be required to work at the Company’s premises at Hyderabad, India. Although this may change from time to time and you may be expected to work and travel in or outside of India. In addition, the Company may assign you to other appropriate duties at its discretion at any time during your employment. This may include assignment to any holding, subsidiary, associated or affiliated company. The Company may at any time on issuance of a prior notice in writing require you to work on a different shift basis. In such circumstances, you will be allocated an appropriate roster.

The Employee Handbook is to be read in conjunction with and forms part of this Appendix.

Commencement Date	On or before 6/26/2024
Remuneration	Your commencing remuneration – Overall Annual Cost will be Rupees Nine Lakhs Sixty Five Thousand Only/-

TERMS & CONDITIONS OF EMPLOYMENT:

Hours of Work	Standard working hours per week will be 40. Currently we are working in Four shifts 8:00 A.M to 5:00 P.M, 6:00 P.M to 3:00 A.M ,3:00 P.M to 12:00 A.M and 10:00 P.M to 7:00 A.M from Monday to Friday with one hour (unpaid) breaks during the working day.
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The shift timings may change depending on company’s business requirements. The company, at any time, may require you to work on any shift timings. The change will be communicated to you as appropriate.

Given the nature of business, associates in either shift may have to follow a holiday schedule as applicable in our parent offices in the Unites States. The holiday schedule will be informed to you and will be available with the Human Resources.

Overtime	All employees are expected to work such hours as may reasonably be expected in the requirements of their position. Overtime is payable to employees without people management duties for additional hours worked in excess of 40 hours per week subject to the conditions as laid out in the Employee Handbook.
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Probationary Period	The first Six months of your employment constitute a period of probation, commencing on your first day of employment. During the period of probation, your services may be terminated at any time by either party giving the other one month notice, in writing or salary in lieu of such notice without being obliged to assign any reason for such termination.										
Payment	You will be paid monthly by credit transfer. Each payment will cover the current month.										
Privilege Leave	You will receive 15 days privilege leave rising in line with length of service as detailed below: <table><tr><th>Service as at 1st January</th><th>Annual Entitlement</th></tr><tr><td>Up to 2 years</td><td>15</td></tr><tr><td>3 years</td><td>16</td></tr><tr><td>4 years</td><td>17</td></tr><tr><td>5 years</td><td>18</td></tr></table>	Service as at 1st January	Annual Entitlement	Up to 2 years	15	3 years	16	4 years	17	5 years	18
Service as at 1st January	Annual Entitlement										
Up to 2 years	15										
3 years	16										
4 years	17										
5 years	18										
Casual Leave	You will receive 7 days Casual Leave in each calendar year. Casual leave days are intended to be used for special events, religious observance and emergency. Casual leave must be used in the calendar year in which it is granted. Further details relating to leave can be found in Employee Handbook.										
Provident Fund	Each employee will become a member of the Provident Fund on their hire date.										
Gratuity	On completing five years of continuous service you will be eligible for the payment of gratuity. As per the payment of Gratuity Act, this amount is equivalent to half month's basic pay for every completed year of services. At the time of your separation from the company, be it by resignation, termination or retirement. However, where an employee is dismissed on disciplinary grounds, in line with the Gratuity Act, no entitlement to Gratuity payments exist.										
Pay Review	Your overall annual will be reviewed annually in February of each year commencing from February 2025 . The Company has no obligation to increase your salary and on review the Company may, at its absolute discretion, maintain the then existing level of overall annual cost or increase it by an amount and subject to any terms it may decide.										
Disciplinary Procedure	As detailed in the Employee Handbook.										
Grievance Procedure	As detailed in the Employee Handbook.										
Confidentiality	You are required to consider all business information and other confidential information of the Company and its clients which										

you come across during employment/engagement with the Company as strictly confidential and are required to keep the same in strict confidence. You are not authorized to make any disclosure or divulge any such information to any third party either during or after the termination of employment with the Company. Full details of the Company's Confidentiality Policy are outlined in the attached Employee Handbook. You are required to ensure that you are familiar with and comply with the details of this policy.

Security

Employees are subject to search by authorised Company Personnel when there is probable cause to believe that the employee is committing an illegal act. Refusal to permit a search authorised under the Company guidelines directly impairs the ability of the Company to provide a safe and secure working environment. Therefore, such a refusal may be considered grounds for disciplinary action, including, after investigation, dismissal.

Notice Period: ---

During Probation Period: --

In case you decide to leave the company, you are required to give the company a notice period of one month (or) payment of an amount equivalent to one month's gross monthly salary in lieu of the notice period.

Your services are liable to be terminated by the company without assigning any reason / giving any notice period during your performance during the probation period

After Confirmation: ---

Once confirmed you will need to serve a notice of two months in case you wish to resign from the services of company. Similarly your services can be terminated by the company by giving two months' notice or payment of gross monthly salary in lieu thereof on either side on confirmation.

In event of your resignation, the company in its sole discretion will have an option to accept the same and relieve you prior to completion of stipulated notice period of two months without any pay in lieu of notice period.

Other Information

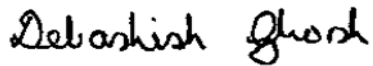
You will at all times promote the Company's Business and interests. Furthermore, you will at all times abide by the Company's policies and procedures, including all the terms and conditions laid out in the Employee Handbook and all other policies and procedures as notified to you by the Company from time to time.

Amendments

Any amendments to your terms of employment will be notified individually in writing or via Company notice boards / intranet.

Any dispute or controversy arising out of this employment or relating to any interpretation, performance or breach of terms and conditions of Employment, shall be settled amicably or in accordance with Employee Grievance Committee.

For Berkadia Services India Private Limited



Debashish Ghosh
Senior Vice President - Human Resources

Acceptance

I Avanish Kumar Gupta, have received the offer letter including the Employee Handbook and other Company Policies and Procedures as notified to me by the Company during the term of my employment with the Company and I understand, accept and agree to be bound to the conditions as stated.

I, Avanish Kumar Gupta, confirm that I understand that the Company may assign me to work on an Evening Shift basis, with written notice, at its discretion. I confirm my ability to work such Evening Shift hours.

Signed

Date.....